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Urban tree protections face the axe in new resource management system

25 August 2026

EDS has slammed the government's approach to protecting urban trees under the proposed Natural Environment Bill and Planning Bill, which will replace the Resource Management Act.

"Thousands of trees are currently protected in council plans across the country, with around 6,000 in Auckland alone," said EDS Reform Director Dr Greg Severinsen.

"There are lots of reasons for that. Large, mature trees – both indigenous like coastal pōhutukawa and exotic like oaks – contribute to our cities' historic heritage, ecology, amenity and ecosystem services like shading and cooling. They are crucial ecological infrastructure.

"But as part of the government's quest to elevate development and property rights above the common good, the Bills will completely gut the ability of councils to protect urban trees.

"The government's message has been crystal clear: individual trees or stands of trees will be capable of protection only if they have *significant historic heritage* value, and this will be done under the development-focused Planning Bill rather than the Natural Environment Bill.

"Analysis by the NZ Notable Trees Trust in Auckland and Nelson suggests that up to three-quarters of currently protected notable trees on non-council land may no longer qualify for protection, because their importance is in their ecological, botanical, amenity, landscape or community value rather than historic heritage.

"Even if trees with heritage value are protected, regulatory relief will apply – meaning councils will have to compensate landowners if restrictions have a significant impact on development potential.

"Massive urban development and intensification pressures may mean the leafy suburbs of places like Auckland simply disappear.

"These weak protections for individual trees add to the overall picture of the Bills being disastrous for the environment and people's health more broadly.

"Significant natural areas, for example, can still be protected but councils will likely have to compensate landowners for the privilege. Realistically, they won't be able to.

"Visual amenity, character, urban design and landscapes that are less than outstanding can't be managed at all.

"Whether urban green space can be provided for depends entirely on how the Minister chooses to define 'well-functioning urban areas' in national direction.

"Environmental limits have to be balanced against communities' economic aspirations.

"And councils won't be allowed to manage urban sprawl or try to reduce greenhouse gas emissions through good urban planning.

"All this means our urban areas may have plenty of houses and shops, but none of the natural infrastructure that makes them good places to be," concluded Dr Severinsen.

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